

HOUSE No. 4312

The Commonwealth of Massachusetts

PRESENTED BY:

Brian M. Ashe and Jacob R. Oliveira

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to charter changes for the town of Longmeadow.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Brian M. Ashe</i>	<i>2nd Hampden</i>	<i>7/16/2025</i>

HOUSE No. 4312

By Representative Ashe of Longmeadow and Senator Oliveira, a joint petition (accompanied by bill, House, No. 4312) of Brian M. Ashe (by vote of the town) relative to the charter of the town of Longmeadow. Municipalities and Regional Government. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to charter changes for the town of Longmeadow.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 2-10 of the charter of the town of Longmeadow, as on file with the
2 state archivist, is hereby amended by striking out subsection (c) and inserting in place thereof the
3 following 2 subsections:-

4 (c) No officer of the town or member of any board, commission or other committee of the
5 town, whether elected or appointed, and no town or school employee, shall be a member of the
6 finance committee with the exception of subsection (d) below.

7 (d) The finance committee shall appoint one member to serve on the Town's Capital
8 Planning and Building Committee, pursuant to section 7-7 of the charter .

9 SECTION 2. Section 3-2 of said charter is hereby amended by adding the following
10 subsection:-

11 (f) Municipal Light Board - The select board shall be the municipal light board of the
12 town and shall have all the powers and duties given to municipal light boards under Chapter 164
13 of the Massachusetts General Laws, provided that the select board shall further have the
14 authority, at their discretion, to appoint a municipal light board in their stead, consisting of three
15 members, with each member serving a three-year term, such terms to be staggered upon their
16 initial appointment, with one member initially appointed for one year, one for two years, and one
17 for three years, and with each subsequent term to be three-years.

18 SECTION 3. Said charter is hereby further amended by striking out section 7-7 and
19 inserting in place thereof the following section:

20 Section 7-7. Capital Planning and Building Committee.

21 (a) Establishment and Responsibilities

22 The Capital Planning and Building Committee (CPBC) shall be responsible for receiving
23 a plan of annual capital improvement projects and needs from the Town Manager. The
24 committee shall review these projects and capital needs, recommending any adjustments to
25 funding priorities based on resident input. The capital improvement program submitted by the
26 Town Manager and any priority adjustments recommended by the CPBC committee shall be
27 submitted annually to the Select Board. The Select Board shall hold a public hearing on the
28 capital improvement program before voting on the program and forwarding it to the Finance
29 Committee alongside the proposed operating budget.

30 The CPBC shall review and provide comments on the Town Manager's five-year Capital
31 Improvement Program.

32 (b) Composition and Appointment

33 The Capital Planning and Building Committee shall consist of seven (7) members, six of
34 whom shall be appointed by the Select Board for three-year staggered terms. One member shall
35 be selected from and by the Finance Committee. The composition of the committee shall, to the
36 extent possible, include individuals with expertise in the following fields: law; architecture; civil,
37 mechanical, or structural engineering; construction; capital finance or related disciplines.

38 (c) Capital Plan Contents

39 The capital improvement program shall include:

- 40 1. A clear, concise summary of its contents;
- 41 2. A list of all capital improvement projects and needs to be undertaken during the
42 ensuing five years, with supporting documentation describing the need for each project;
- 43 3. Cost estimates, the source of those cost estimates, methods of financing (if
44 applicable), and recommended time schedules for each project;
- 45 4. The estimated annual costs of operating and maintaining each facility and/or major
46 piece of equipment involved.

47 (d) Additional Duties Related to Town Buildings

48 (1) The committee shall advise the Town Manager and Select Board on future needs for
49 town buildings and review capital projects related to town buildings, including schools.

(2) The committee shall incorporate aspects of the Long Range Plan into decision-making and recommendations, including an emphasis on climate adaptation and resiliency efforts in applicable capital improvement plan submissions.

(e) Policies and Procedures

The committee shall draft policies and procedures that guide its review and approval of annual capital improvement plan projects. The policies and procedures shall be approved by the Select Board to ensure efficient and effective operation in fulfilling its duties.

(f) Oversight and Reporting

(1) The committee shall review and monitor the implementation of the Town Manager's capital improvement plan and provide annual recommendations to the Select Board on capital expenditures.

(2) The committee shall ensure that prior years' capital appropriations meet the purposes for which funds were allocated.

(3) The committee shall review maintenance plans to ensure they align with the long-term needs of town buildings.

(4) the committee shall receive reports on the status of capital projects and expenditures and provide updates to the Select Board on progress.

SECTION 4. This act shall take effect upon its passage.